

Interprovincial Mobility & Charter Rights

The Structural Cage

Expanded Edition — Including Federal Jurisdiction Analysis

Submitted by: The Alberta Disability System Breakdown

Federal jurisdiction argument extended by a fellow AISH recipient who chose not to be named.

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The right to leave is written into the Constitution. The ability to leave was never written into the program. For 79,290 Albertans living below the poverty line, on income that can be withheld without notice, with no savings buffer and no moving support, the Charter right to mobility is not a right. It is a locked door with a constitutional label on it.

The right to move freely within Canada is guaranteed by the Canadian Charter of Rights and Freedoms. For most Canadians, that right is real. For Albertans with disabilities living on AISH or ADAP, it is a legal fiction — created not by an explicit prohibition, but by a financial structure that makes departure impossible, and a transfer protocol that does not exist. A right that cannot be exercised is not a right. It is a promise the government has quietly broken.

SECTION 1: THE CONSTITUTIONAL FRAMEWORK

1.1 Section 6 — Mobility Rights

Section 6(2) of the Canadian Charter of Rights and Freedoms guarantees every citizen: (a) the right to move to and take up residence in any province; and (b) the right to pursue the gaining of a livelihood in any province.

Section 6(3) permits provinces to impose laws of general application — but only if those laws do not discriminate among persons primarily on the basis of province of present or previous residence. A provincial program that imposes financial conditions making mobility impossible for a specific population — without imposing equivalent barriers on others — engages this prohibition.

1.2 Section 7 — Security of the Person

Section 7 guarantees the right to life, liberty, and security of the person, not to be deprived thereof except in accordance with the principles of fundamental justice. Abrupt termination of disability income upon interprovincial relocation — with no bridge support, no grace period, and no appeal mechanism — creates a direct and government-caused threat to physical security. The Supreme Court in *Gosselin v. Quebec (Attorney General)* [2002] 4 SCR 429 confirmed that s.7 may be engaged by government action that imposes severe deprivation on vulnerable populations.

1.3 Section 15 — Equality Rights

Section 15(1) guarantees equal benefit of the law without discrimination based on mental or physical disability. The mobility barriers created by AISH/ADAP program design fall exclusively on persons with disabilities. A non-disabled Albertan can accumulate savings, access credit, and relocate. A person on AISH cannot — not because of their disability, but because of the program structure built around that disability. Under *Fraser v. Canada* [2020] 3 SCR 113, facially neutral policies that produce disproportionate adverse effects on protected groups engage s.15.

1.4 The Constructive Denial Principle

A Charter right that exists in law but cannot be exercised in practice due to government-created financial conditions is constructively denied. AISH recipients are documented to live \$6,004 below Canada's official poverty line annually (Maytree, 2024). Conventional financial guidance recommends three to six months of savings before a major interprovincial move. For a population with no discretionary income and payments subject to unannounced withholding, accumulating that buffer is a structural impossibility — not a personal failure.

CONSTITUTIONAL FINDING:

The AISH/ADAP program structure does not explicitly prohibit mobility. It renders mobility economically impossible for a population living below the poverty line, through deliberate program design choices. This constitutes constructive denial of rights guaranteed under ss. 6, 7, and 15 of the Charter.

SECTION 2: THE PAYMENT INSTABILITY CAGE

2.1 The Promise vs. The Reality

The word ‘Assured’ in Assured Income for the Severely Handicapped is not decorative. It is a program commitment — a government representation that this income would be stable, predictable, and reliable. The documented reality is the opposite.

The Promise	The Documented Reality
Assured income	Payments withheld without notice, without stated cause, without appeal
Month-to-month stability	Recipients have no legal right to advance notice of withholding
Support for recipients	No grace period when payment fails — eviction proceedings can begin immediately
Program as safety net	No emergency reserve — recipients are structurally prevented from accumulating savings
Dignity and security	Landlords write AISH-specific eviction clauses due to documented payment unreliability

2.2 The Housing Causation Chain

The standard framing treats AISH recipient housing instability as a downstream consequence of low income. The causation chain is sharper than that:

- AISH payment withholding is unpredictable, unannounced, and without appeal.
- Landlords in Alberta’s private rental market — which has no rent cap — are aware of this.
- Landlords write AISH-specific lease clauses: non-payment due to any cause triggers eviction.
- When AISH withholds payment without notice, rent is due. The eviction clause activates.
- The recipient has no savings buffer — the program structurally prevents accumulation.
- Eviction proceeds. The government’s payment failure becomes the recipient’s housing crisis.

FINDING:

AISH payment instability *directly causes* housing instability. The program's own unreliability is the mechanism by which recipients lose housing. This is not a gap in the system. This is the system producing its documented outcome.

SECTION 3: THE INTERPROVINCIAL TRANSITION CLIFF

3.1 What Currently Happens When a Recipient Leaves Alberta

Step	What Happens
1	Recipient decides to relocate to another province.
2	AISH payments cease. No bridge support. No transition period. No notice required.
3	Recipient must apply to the new province's disability program from zero.
4	Processing time in receiving province: weeks to months. No income during this period.
5	If denied by new province: no appeal mechanism through AISH. Recipient is on their own.
6	Moving costs, damage deposit, first month's rent: entirely the recipient's responsibility.
Result	For anyone living below the poverty line, Steps 1 through 6 are financially impossible.

3.2 The Financial Reality of Relocation

A standard interprovincial relocation for a person with disabilities requires:

Cost Item	Estimated Amount	Available to AISH Recipient
Moving company / truck rental	\$1,500 - \$5,000+	\$0 — no program support
First month's rent (new province)	\$1,200 - \$2,000+	\$0 — AISH terminated
Damage deposit (new province)	\$600 - \$2,000+	\$0 — no bridge funding
Bridge income (application wait)	\$1,940/month × wait time	\$0 — payments cease immediately
Total minimum requirement	\$5,240 - \$11,000+	\$0

AISH recipients are already documented to live \$6,004 below Canada's poverty line annually. The minimum cost of relocation exceeds an entire year of discretionary income — for a population that has no discretionary income. The Charter right to mobility exists. The financial conditions to exercise it do not.

3.3 The Portability of Established Eligibility

Alberta is obligated to carry its recipients across the provincial border. Not as a courtesy. As a responsibility. AISH eligibility is not self-reported. It is determined through a formal government process: a physician completes a medical assessment; a trained government adjudicator reviews it; a finding of severe disability that substantially prevents earning a livelihood is made and placed on file. Every one of the 79,290 current AISH recipients has that finding on file in Alberta's system.

When a recipient relocates, Alberta does not transfer those records. It does not advocate for that person with the receiving province. It simply stops paying — and leaves the recipient to rebuild their evidentiary file from scratch, in a new province, with a new doctor, during a housing transition, with no income.

FINDING:

Alberta holds the documentation. Alberta made the determination. Alberta has the obligation to transfer both — and to stand behind its own findings when a recipient crosses a provincial border. Abandoning a recipient at the boundary of the province that approved them is not a neutral administrative outcome. It is a government choosing to walk away from its own decision.

SECTION 4: THE ALBERTA DISABILITY REFUGEE PHENOMENON

This campaign has documented — across nine provincial comparison reports — that recipients are actively considering leaving Alberta due to the ADAP transition, the CDB clawback, the removal of appeal rights, and the absence of rent caps. These are not people choosing adventure. These are people choosing survival.

The term ‘*Alberta Disability Refugee*’ is not hyperbole. It describes a population that *would* leave if they could — and cannot, because the program that is failing them is also the program that controls their ability to go.

A government that creates conditions forcing people to consider leaving, and simultaneously maintains program structures that prevent leaving, has built a trap. A trap with a Charter address.

SECTION 5: THE FEDERAL JURISDICTION ARGUMENT — WHY OTTAWA CANNOT LOOK AWAY

The preceding sections establish that Alberta’s program design constructively denies mobility rights guaranteed under the Charter. A fellow AISH recipient extended this argument one level further — and they are correct to do so.

The question is not only whether Alberta has failed its Charter obligations. The question is why the federal government has not been required to answer for its role in that failure.

5.1 Section 6 Rights Are Federal Rights

The Canadian Charter of Rights and Freedoms is federal constitutional law. Section 6 mobility rights are not provincial rights administered by provinces at their discretion. They are federal constitutional guarantees that apply to every Canadian in every province.

When a province’s program design renders a Charter right functionally inaccessible for a protected population, the federal government has a constitutional responsibility to act. Delegation of social program delivery to provinces does not delegate away the federal obligation to ensure Charter compliance.

PRINCIPLE:

A Charter right that only exists in provinces where the program structure happens to support it is not a Charter right. It is a provincial courtesy. Section 6 was written into the Constitution precisely to prevent that outcome.

5.2 The Canada Disability Benefit Was Parliament's Answer — Alberta Neutralized It

The Canada Disability Benefit Act (SC 2023, c 22) was Parliament's recognition that disability income inequality across provinces required a federal floor. The CDB was designed to provide a consistent national baseline — income that would exist regardless of which province a recipient lived in.

Alberta has announced a dollar-for-dollar clawback of the CDB from both AISH and ADAP recipients. The federal benefit is not supplementing provincial income. It is being used as a provincial cost offset — reducing Alberta's expenditure by exactly the amount the federal government transfers to Alberta recipients.

The result: 79,290 Albertans receive no net benefit from the federal government's disability income legislation. Parliament's answer to national disability income inequality has been neutralized by one province's administrative decision — with no federal intervention.

STRUCTURAL FAILURE:

The federal government cannot simultaneously legislate a national disability income floor and permit provinces to claw it back in full. If the CDB can be entirely offset by provinces, it is not a floor. It is a suggestion. Parliament did not pass the Canada Disability Benefit Act to fund provincial cost savings.

5.3 Provincial Variation Makes Charter Mobility Rights Unequal by Design

Under the current framework, the practical value of Section 6 mobility rights for a disabled Canadian depends entirely on which province they live in — and which province they are moving to. This produces a system where:

- A disabled Albertan who relocates to British Columbia *may* access superior supports — but cannot afford the move because AISH provides no bridge income.
- A disabled Albertan who relocates to a province with lower disability income may be worse off — with no mechanism to verify outcomes in advance or appeal the receiving province's determination.

- A disabled Albertan who *cannot* relocate at all is constitutionally entitled to leave but financially imprisoned by a program that prevents the accumulation of the savings needed to do so.

The federal government has the authority — and under the Charter, the obligation — to establish national portability standards for disability income. The infrastructure already exists: Employment Insurance, the Canada Pension Plan, and Old Age Security all operate on portable federal determinations. The only disability income program that lacks portability is the one serving the most vulnerable population.

Program	Jurisdiction	Portability
Employment Insurance	Federal — Service Canada	Fully portable. Benefits follow you across provincial borders without interruption or reapplication.
Canada Pension Plan	Federal — Service Canada	Fully portable. Contributions and entitlements recognized in all provinces and territories.
Old Age Security	Federal — Service Canada	Fully portable. Eligibility determined federally and honoured in all jurisdictions.
Canada Disability Benefit	Federal — ESDC	Intended as portable federal floor. Alberta claws it back dollar-for-dollar, eliminating the portability benefit.
AISH / ADAP	Provincial — Alberta only	Not portable. Payments cease immediately upon departure. No transfer protocol. No bridge income. No advocacy.

FINDING:

The federal government has demonstrated that portable income determination is administratively achievable. It has chosen not to apply that model to disability income recipients — the population for whom portability matters most.

5.4 What Federal Responsibility Actually Requires

A fellow AISH recipient framed this argument directly: if the Charter guarantees the right to move between provinces, and disability eligibility and payments are not portable, then

the Charter right is theoretical but not practical. The only mechanism that makes Section 6 real in practice for disabled Canadians is federal responsibility for disability income standards — not delivery, but standards.

Federal responsibility does not require the federal government to administer disability income programs. It requires the federal government to establish:

1. **Minimum national portability standards** — disability eligibility determined in one province must be recognized in another for a defined transition period, without requiring full reassessment.
2. **Bridge income requirements** — provinces must provide income continuity during interprovincial transitions, funded through federal transfer arrangements if necessary.
3. **Protection of federal benefits from provincial offset** — the CDB cannot be used as a provincial cost offset. It must reach recipients as net income, not as a fiscal transfer to provincial governments.
4. **Eligibility file transfer protocols** — provinces must transfer complete eligibility documentation to receiving provinces within a defined timeline, relieving recipients of the obligation to rebuild their own files.

None of these requirements are novel. All of them have precedents in existing Canadian social policy. The will to apply them to disability income has been absent. That absence is now a Charter question.

The constitutional argument extended by a fellow AISH recipient is correct: equitable treatment of disabled Canadians across provincial borders is not a provincial responsibility that the federal government can delegate away. It is a federal constitutional obligation that provincial variation cannot override.

SECTION 6: POLICY DEMANDS

The following policy changes are required to bring Alberta's disability income program into compliance with its Charter obligations and basic standards of human dignity, and to compel federal action on the national portability and CDB clawback issues.

Provincial Obligations — Alberta

- **Payment stability:** minimum 30 days written notice before any payment withholding, with stated reason and written appeal pathway.
- **Bridge support:** AISH/ADAP payments must continue for a minimum of 90 days following confirmed interprovincial relocation.

- **Relocation assistance:** funded program covering reasonable moving costs, first month's rent, and damage deposit in destination province.
- **Mandatory eligibility file transfer:** complete file transferred to receiving province within 14 days of relocation notification — by Alberta, not by the recipient.
- **Grandfathered eligibility:** receiving provinces must honour Alberta's determination for 12 months without new independent assessment.
- **Advocacy obligation:** if a recipient is denied by a receiving province, Alberta must provide funded legal advocacy for a minimum of six months.

Federal Obligations — Government of Canada

- Establish national minimum portability standards for disability income eligibility — binding on all provinces as a condition of federal transfer funding.
- Prohibit dollar-for-dollar clawback of the Canada Disability Benefit from provincial disability income calculations. The CDB must reach recipients as net income.
- Fund bridge income provisions for interprovincial disability income transitions through federal-provincial transfer arrangements.
- Mandate eligibility file transfer protocols between provinces under federal disability income framework legislation.
- Conduct a national audit of Charter compliance in provincial disability income programs, with public reporting and binding remediation requirements.

SECTION 7: SUBMISSION TARGETS

This document is submitted to the following recipients. A written response is requested from each.

Recipient	Contact	Jurisdiction / Basis
Hon. Jason Nixon, Minister, Assisted Living & Social Services	rimbey.rockymountainhouse.sundre@assembly.ab.ca	Provincial — program authority
Premier Danielle Smith	premier@gov.ab.ca	Provincial — executive authority
MP Michael Cooper, St. Albert-Edmonton	michael.cooper@parl.gc.ca	Federal — constituent MP
Hon. Patty Hajdu, Minister of Jobs and Families	patty.hajdu@parl.gc.ca	Federal — disability file
Hon. Sean Fraser, Minister of Justice & AG of Canada	sean.fraser@parl.gc.ca	Federal — Charter compliance
Canadian Human Rights Commission	info.com@chrc-ccdp.gc.ca	Federal — ss.6, 7, 15 jurisdiction
MLA Marie Renaud, St. Albert	St.Albert@assembly.ab.ca	Provincial — engaged respondent

SOURCES AND LEGAL CITATIONS

- Canadian Charter of Rights and Freedoms, ss. 6, 7, 15 — Constitution Act, 1982.
- *Gosselin v. Quebec (Attorney General)*, [2002] 4 SCR 429 — s.7 and deprivation of vulnerable populations.
- *Fraser v. Canada (Attorney General)*, [2020] 3 SCR 113 — s.15 and adverse effects discrimination.
- Canada Disability Benefit Act, SC 2023, c 22 — federal poverty-reduction mandate and national income floor.

- Maytree — *Welfare Incomes Across Canada*, 2024. AISH recipients \$6,004 below poverty line annually.
- Government of Alberta — AISH Caseload Open Data, September 2025. 79,290 recipients.
- Government of Alberta — ADAP Program Page, 2026. Transition structure and benefit amounts.
- Inclusion Alberta — ADAP Fact Sheet, October/December 2025.
- Alberta Doctors' Digest, Nov/Dec 2025 — 650,000 Albertans without a family doctor.
- Alberta Disability System Breakdown — *Financial Reality Report*, April 2026.
- Alberta Disability System Breakdown — *Alberta Disability Refugee Series*, April 2026 (nine provincial reports).

ATTRIBUTION

The federal jurisdiction argument in Section 5 of this document was extended by a fellow AISH recipient whose analysis of Section 6 identified the structural necessity of federal standards for disability income portability. Their constitutional reasoning is documented here without their name, at their request.

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